

CHAPTER 19.

An Act to extend and amend the Law relating to the Adjustment of Financial Relations between Local Government Areas on the Alteration of the Boundaries thereof or other change in relation to which the adjustment takes place.
[15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) On any adjustment under section thirty-two or section sixty-two of the Local Government Act, 1888, or under section sixty-eight of the Local Government Act, 1894—

Amendment of law as to adjustments on alteration of local government boundaries, and extension of matters in respect of which adjustment may be made.

(a) Any adjustment of the Local Taxation Licences, the Estate Duty Grant, and the residue under section one of the Local Taxation (Customs and Excise) Act, 1890, shall be carried out in accordance with the rules contained in Part I. of the Schedule to this Act:

(b) Provision shall be made for the payment to any authority of such sum as seems equitable in accordance with the rules contained in Part II. of the Schedule to this Act, in respect of any increase of burden which will properly be thrown on the ratepayers of the area of that authority in meeting the cost incurred by that authority in the execution of any of their powers and duties as a consequence of any alteration of boundaries or other change in relation to which the adjustment takes place.

51 & 52 Vict. c. 41;
56 & 57 Vict. c. 73;
53 & 54 Vict. c. 60.

(2) This section shall apply to any adjustment made (otherwise than by agreement) under any of the said sections thirty-two and sixty-two of the Local Government Act, 1888, and sixty-eight of the Local Government Act, 1894, whether as originally enacted or as applied in England or Wales by any other Act, or by any Provisional Order, or by any order made or confirmed by the Local Government Board under the Local Government Act, 1888, or the Local Government Act, 1894, and consequent on an alteration of boundaries or other change effected after the passing of this Act.

2. This Act may be cited as the Local Government (Adjustments) Act, 1913.

Short title and repeal.

Section 1.

SCHEDULE.

PART I.

RULES FOR DETERMINING ADJUSTMENT OF THE LOCAL TAXATION LICENCES, THE ESTATE DUTY GRANT, AND THE RESIDUE UNDER SECTION ONE OF THE LOCAL TAXATION (CUSTOMS AND EXCISE) ACT, 1890.

(1) The portion of the Local Taxation Licences and Estate Duty Grant payable or estimated to be payable in respect of the area of the administrative county as it existed immediately before the appointed day shall after the appointed day be divided between the councils between which the adjustment is to be made, and the amount payable to each shall be apportioned on the following basis :—

- (a) There shall be apportioned to the council of the administrative county from which the area is severed amounts equal to the average annual amounts of the compulsory payments and transfers made by or on behalf of that council in accordance with section twenty-four of the Local Government Act, 1888, in respect of the five years ending the thirty-first day of March preceding the appointed day, less the portions of such average annual amounts paid and transferred for and in respect of the separated area, and amounts equal to such last-mentioned portions shall be apportioned to the council of the other administrative county.
- (b) Out of the balance (if any) of the said portion of the Local Taxation Licences and Estate Duty Grant there shall next be apportioned to the council of the administrative county from which the area is severed amounts equal to the average annual amounts of the compulsory payments made by or on behalf of that council in accordance with section twenty-six of the Local Government Act, 1888, in respect of the five years ending the thirty-first day of March preceding the appointed day, less the portions of such average annual amounts paid for and in respect of the separated area, and amounts equal to such last-mentioned portions shall be apportioned to the council of the other administrative county.
- (c) Out of the balance (if any) of the said portion of the Local Taxation Licences and Estate Duty Grant there shall next be apportioned to the council of the administrative county from which the area is severed a sum equal to one-half of the average annual cost during the five years preceding the appointed day of the maintenance of main roads within the county (including any payments made in respect of the interest on or of the repayment of the capital of loans raised on account of such main roads), after deducting the amount of one-half of such cost incurred in respect of main roads within the area separated from the county, and such last-mentioned amount shall be apportioned to the council of the other administrative county :

Provided that, if it appears that the council of the administrative county from which the area is severed have failed to declare any roads in the county to be main roads

which ought to have been so declared, or have declared any roads to be main roads which ought not to have been so declared, proper adjustments shall be made in the calculation of the cost of maintenance of main roads in the county under this rule, by the inclusion of the cost of such roads as ought to have been declared to be main roads or the exclusion of the cost of such roads as ought not to have been declared to be main roads, as the case may require :

- (d) If any balance of the Local Taxation Licences and Estate Duty Grant remains after apportioning between the two councils the sums ascertained in accordance with the foregoing rules, such balance shall be divided between the councils in proportion to the rateable values on the appointed day of the administrative county from which the area is severed less that area, and of that area, respectively :
- (e) If any difficulty arises in ascertaining for the purposes of paragraph (a) or paragraph (b) the portion of any item paid or transferred for and in respect of the separated area or any part thereof, a portion of that item proportionate to the rateable value at the commencement of the financial year in respect of which the payment or transfer was made of that area or part as compared with the rateable value of the whole area for and in respect of which the item was paid or transferred shall be deemed to have been paid or transferred for and in respect of the separated area :
- (f) If the amount available for apportionment under any of the preceding paragraphs is insufficient to meet the whole of the amounts apportioned under the paragraph to the two administrative counties, those amounts shall be reduced proportionately.

(2) The residue under section one of the Local Taxation (Customs and Excise) Act, 1890, payable or estimated to be payable in respect of the area of the administrative county as it existed immediately before the appointed day shall, after the appointed day, be divided between the councils in proportion to the rateable values on the appointed day of the administrative county from which the area is severed less that area, and of that area, respectively.

(3) For the purposes of this schedule, the expression "administrative county" includes a county borough, the expression "appointed day" means the day fixed for the transfer of the separated area from one administrative county to another, or, if the transfer is for the purposes of sections twenty to twenty-six of the Local Government Act, 1888, to be deemed to take effect at some later date, then such later date ; and the expression "rateable value" means (unless the parties to the adjustment otherwise agree) the rateable value as determined by the last valuation list, or, if there is no valuation list, by the last poor rate.

PART II.

RULES FOR DETERMINING SUM TO BE PAID IN RESPECT OF INCREASE OF BURDEN ON RATEPAYERS.

- (1) Regard shall be had to—

- (a) The difference between the burden on the ratepayers which will properly be incurred by the authority in meeting the cost of executing any of their powers and duties and the

burden on the ratepayers which would properly have been incurred by the authority in meeting such cost had no alteration of boundaries or other change taken place ;

(b) The length of time during which the increase of burden may be expected to continue :

Provided that no alteration of income in consequence of an apportionment under Part I. of the schedule shall be taken into account.

(2) The sum payable to any authority in respect of the increase of burden shall not exceed, or, if payable by instalments or by way of annuity, the capitalised value of the instalments or annuity shall not exceed, the average annual increase of burden multiplied by fifteen.

(3) Any sum payable in respect of the cost of the maintenance of main roads shall be payable by way of annuity.

CHAPTER 20.

An Act to consolidate and amend the Laws relating to
Bankruptcy in Scotland. [15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Short title.

1. This Act may be cited as the Bankruptcy (Scotland) Act, 1913.

Construction
and meaning
of certain
expressions.

52 & 53 Vict.
c. 39.

2. In this Act, unless a contrary intention appears, " Lord Ordinary " shall mean the Lord Ordinary officiating on the Bills in the Court of Session ; " deliverance " shall include any order, warrant, judgment, decision, interlocutor, or decree ; " clerk or " officer of the Court of Session " shall include the keeper of the registers of inhibitions and adjudications ; " accountant " shall mean the accountant of court appointed under the Judicial Factors (Scotland) Act, 1889 ; " Gazette " shall mean the Edinburgh Gazette ; " commissioners " shall mean a majority of the commissioners elected under the provisions of this Act ; " property " and " estate " shall, when not expressly restricted, include every kind of property, heritable or moveable, wherever situated, and all rights, powers, and interests therein capable of legal or voluntary alienation, or of being affected by diligence or attached for debt, and any non-vested contingent right of succession or interest in property conceived in favour of the bankrupt under the will or settlement of any person deceased, or under marriage contract, or under any other deed, instrument, or writing of an irrevocable nature ; " moveable " shall include personal ; and " heritable " shall include real ; " security " shall include securities, heritable or moveable, and rights of lien, retention, or preference, and conveyances thereof and any part thereof ; " successors " shall include all persons who have succeeded to any property which was vested in a party deceased at the time of his death, whether as heirs, heirs apparent, trustees under voluntary conveyances, representatives by deed